

Present

Mr. Justice Sheikh Abdul Awal

Criminal Appeal No. 157 of 2016

Rehana Akter

.....Convict-appellant.

-Versus-

The State

.....Respondent.

Mr. Md. Humayun Kabir, Advocate

.....For the convict-appellant.

Ms. Shahida Khatoon, D.A.G with

Ms. Sabina Perven, A.A.G with,

Ms. Koheenoor Akter, A.A.G.

..... For the respondent.

Heard on 02.07.2024 Judgment on 31.07.2024.

Sheikh Abdul Awal, J:

This criminal appeal at the instance of convict appellant, Rehana Akter is directed against the impugned judgment and order of conviction and Sentence dated 11.01.2015 passed by the learned Additional Sessions Judge, 3rd Court, Comilla in Sessions Case No. 209 of 2010 arising out of G.R. No. 1165 of 2009 corresponding to Kotwali Model Police Station Case No. 83 dated 26.12.2009 convicting the accused appellant under table 3(ka) of section 19(1) of the Madok Drabya Neyontran Ain, 1990 and sentencing him thereunder to suffer simple

imprisonment for a period of 2(two) years and to pay a fine of Taka 1,000/-(one thousand) in default to suffer simple imprisonment for 01 (one) month more.

Mr. Md. Humayun Kabir, the learned Advocate appearing for the convict appellant submits that the convict appellant is out and out innocent, who has been made scapegoat in the case, in fact, no incriminating goods were recovered from the possession of the accused appellant although the learned Additional Sessions Judge, 3rd Court, Comilla without evaluating the evidence from a correct angle most illegally found the accused appellant guilty under table 3(ka) of section 19(1) of the Madok Drabya Neyontran Ain, 1990.

At the time of pronouncement of judgment, it appears from the record that this Court on 18.01.2016 at the time of admission of appeal granted ad-interim bail to the accused appellant for a period of 06(six) months, and thereafter, no one took any steps to extend the order of bail as a result of which the said bail was expired long before on 18.07.2016. In that view of the matter, I have no hesitation to hold that the convict appellant is a fugitive from law and justice.

In the case of Anti-Corruption Commission Vs. Dr. HBM Iqbal Alamgir, reported in 15 BLC(AD) 44, it has

been held that the Court would not act in aid of an accused person, who is a fugitive from law and justice.

In view of the above, this Appeal must fail.

In the result, the appeal is dismissed. Since the appeal is dismissed the convict- appellant, Rehana Akter is directed to surrender his bail bond within 3 (three) months from today to suffer his sentence, failing which the Trial Court below shall take necessary steps to secure arrest against the convict appellant.

Send down the lower Court records at once.